

# MUTUAL NON-DISCLOSURE AGREEMENT

Accenture BV and Luminary AI BV

Ref: VA/2024/NDA/0061 | Date: 10 April 2024

**THIS MUTUAL NON-DISCLOSURE AGREEMENT** (the “**Agreement**”) is entered into as of 10 April 2024 (the “**Effective Date**”) by and between:

**Accenture BV**, a private limited liability company incorporated under the laws of the Netherlands (KvK: 34117484), having its registered office at Gustav Mahlerplein 90, 1082 MA Amsterdam (“**Accenture**”);  
and

and

**Luminary AI BV**, a private limited liability company incorporated under the laws of the Netherlands (KvK: 82956714), having its registered office at Science Park 400, 1098 XH Amsterdam (“**Luminary**”).

Each party may be referred to as a “**Disclosing Party**” when disclosing Confidential Information and as a “**Receiving Party**” when receiving it.

## 1. DEFINITIONS

- 1.1 “**Confidential Information**” means any non-public information, data, know-how, trade secrets, business plans, financial data, technical specifications, client lists, pricing structures and any other information designated as confidential or which a reasonable person would recognise as confidential given its nature and the circumstances of disclosure.
- 1.2 “**Permitted Purpose**” means the evaluation of a potential commercial collaboration between the Parties in the field of AI-driven supply chain optimisation.
- 1.3 Confidential Information shall not include information that: (a) is or becomes publicly available other than through breach of this Agreement; (b) was known to the Receiving Party prior to disclosure; (c) is lawfully received from a third party without restriction; or (d) is independently developed without reference to the Confidential Information.

## 2. CONFIDENTIALITY OBLIGATIONS

2.1 Each Receiving Party undertakes to:

- (a) keep the Disclosing Party's Confidential Information strictly confidential and use at least the same degree of care it uses to protect its own confidential information, but in no event less than reasonable care;
- (b) not disclose Confidential Information to any third party without the Disclosing Party's prior written consent;
- (c) use the Confidential Information solely for the Permitted Purpose; and

- (d) restrict disclosure to those employees, officers and professional advisers (**“Representatives”**) who have a genuine need to know and are bound by confidentiality obligations no less protective than this Agreement.

2.2 The Receiving Party shall remain liable for any breach of this Agreement by its Representatives.

2.3 If a Receiving Party is required to disclose Confidential Information by applicable law or court order, it shall: (i) give the Disclosing Party prompt written notice where permitted; (ii) co-operate reasonably in seeking a protective order; and (iii) disclose only that portion strictly required.

### 3. TERM AND TERMINATION

- 3.1 **Term.** This Agreement shall commence on the Effective Date and remain in force for a period of **two (2) years**, unless earlier terminated in accordance with Clause 3.2.
- 3.2 **Termination.** Either Party may terminate this Agreement upon **thirty (30) days'** written notice. Termination shall not affect obligations that have accrued prior to the date of termination.
- 3.3 **Survival of Obligations.** Confidentiality obligations under Clause 2 shall survive termination or expiry of this Agreement for a further period of **three (3) years**.
- 3.4 **Return or Destruction.** Upon termination or upon the Disclosing Party's written request, the Receiving Party shall promptly return or certifiably destroy all Confidential Information and copies thereof, and shall certify such return or destruction in writing within five (5) Business Days.

### 4. LIABILITY AND REMEDIES

- 4.1 Each Party acknowledges that a breach of this Agreement may cause irreparable harm for which monetary damages would be an inadequate remedy. Accordingly, the Disclosing Party shall be entitled to seek equitable relief, including injunction and specific performance, in addition to all other remedies available at law or in equity.
- 4.2 **Limitation of Liability.** Subject to Clause 4.1, the aggregate liability of either Party to the other under this Agreement shall not exceed **EUR 250,000** (two hundred and fifty thousand euros).
- 4.3 **Exclusion of Consequential Loss.** Neither Party shall be liable to the other for any indirect, special or consequential loss, including loss of profit, loss of business or loss of opportunity, arising from or in connection with this Agreement.
- 4.4 Nothing in this Agreement shall exclude or limit liability for fraud, wilful misconduct or any other liability that cannot be lawfully excluded.

### 5. GENERAL

- 5.1 **No Licence.** Nothing in this Agreement shall be construed as granting any licence or right in respect of any Intellectual Property Rights of the Disclosing Party.
- 5.2 **No Obligation.** This Agreement does not obligate either Party to proceed with any transaction or business relationship.
- 5.3 **Governing Law.** This Agreement shall be governed by Dutch law. The Parties submit to the exclusive jurisdiction of the courts of Amsterdam.
- 5.4 **Entire Agreement.** This Agreement constitutes the entire agreement between the Parties regarding its subject matter and supersedes all prior discussions and understandings.

IN WITNESS WHEREOF, the Parties have executed this Agreement as of the date first written above.

**For and on behalf of ACCENTURE BV**

\_\_\_\_\_  
Authorised Signatory

Name: \_\_\_\_\_

Title: \_\_\_\_\_

Date: \_\_\_\_\_

**For and on behalf of LUMINARY AI BV**

\_\_\_\_\_  
Authorised Signatory

Name: \_\_\_\_\_

Title: \_\_\_\_\_

Date: \_\_\_\_\_